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U.S. DISTRICT COURT E.D.N.Y.

★ DEC 09 2010 ★

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

AARON K. TELESFORD,

Plaintiff,

-VS-

THE CITY OF NEW YORK, POLICE COMMISSIONER
RAYMOND W. KELLY, DETECTIVE BRIAN WOOD,
SHIELD # 5728, SERGEANT JAMES CAHILL, SHIELD
220 and TAX ID # 901263, DETECTIVE JELSON GOYCO,
TAX ID #926897, DETECTIVE KATHLEEN GRANT, TAX
ID # 917714, DETECTIVE MATTHEW FRANCIS, TAX ID #
925310, DETECTIVE DEMOS MARINAKOS, TAX ID #
901910, POLICE OFFICER JENNIFER LAVELLE, TAX ID #
933921, UNDERCOVER OFFICER C092, UNDERCOVER
OFFICER C081 UNDERCOVER OFFICER C062 and
POLICE OFFICER JOHN DOE, Individually, who was each
involved in the incident resulting in plaintiff's false arrest,
search, seizure, detention and/or injuries.

Defendants.

ECF Case No.

CV 10 - 5707

BROOKLYN OFFICE

**COMPLAINT
AND JURY DEMAND**

GLASSER J.

GO, M.J.

COMPLAINT

PRELIMINARY STATEMENT

1. This is an action for money damages brought pursuant to 42 U.S.C. Sections 1983 and 1988, and the Fourth and Fourteenth Amendments to the United States Constitution, and under the common law of the State of New York, against the City of New York, Detective Brian Wood, Sergeant James Cahill, Detective Jelson Goyco, Detective Kathleen Grant, Detective Matthew Francis, Detective Demos Marinakos, Police Officer Jennifer Lavelle, Undercover Officer C092, Undercover Officer C081, Undercover Officer C062 and Police Officer John Doe, individually, all being police officers employed by the New York City Police Department, in their individual capacities and against Police Commissioner Raymond W. Kelly. Jurisdiction is base upon 28 U.S.C. Sections 1331 and 1343, and on the pendent jurisdiction of this Court to entertain claims arising

under state law.

2. The amount in controversy exceeds \$150,000.00 excluding interest and costs.

3. Venue is laid within the United States District Court for the Eastern District of New York in that Defendant City of New York is located within, and a substantial part of the events giving rise to the claim occurred within the boundary of the Eastern District of New York.

4. It is alleged that on June 19, 2009, the individually named police officer defendants, all employed by the New York City Police Department ("NYPD"), acting under color of state law, intentionally and willfully subjected plaintiff, AARON K. TELESFORD, to, *inter alia*, false arrest, false imprisonment, excessive force and malicious prosecution upon making an unlawful and warrantless search and seizure of the person and belongings of plaintiff. These actions violated plaintiff's rights under the Fourth and Fourteenth Amendments to the United States Constitution. It is further alleged that these violations and torts were committed as a result of policies and customs of the NYPD.

5. Plaintiff seeks monetary damages (special, compensatory and punitive) against defendants, as well as an award of costs and attorneys' fees, and such other and further relief as the Court deems just and proper.

PARTIES

6. AARON K. TELESFORD ("plaintiff"), was at all material times, of full age, resident of the State of New York, and United States citizens.

7. At all times relevant to this complaint, all defendants named herein were duly appointed and acting officers and entities of the NYPD, acting under color of law, to wit: under color of statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.

8. Detective Brian Wood ("Wood"), Shield Number 5728, Sergeant James Cahill, ("Cahill") Shield Number 220, Detective Jelson Goyco ("Goyco"), Tax ID# 926897, Detective Kathleen Grant ("Grant"), Tax ID#917714, Detective Matthew Francis ("Francis"), Tax ID# 925310, Detective Demos Marinakos ("Marinakos"), Tax ID# 901910, Police Officer Jennifer Lavelle ("Lavelle"), Tax ID# 933921, Undercover Officer C092, Undercover Officer C081, Undercover

Officer C062 and Police Officer John Doe, at all times relevant were New York City Police Officers (or detectives) of the New York City Police Department. They are each sued in their individual and official capacities as a result either of their actions at the scene of the incident giving rise to plaintiff's arrest, or, in their capacity as policymakers with respect to training, supervision and discipline of police officers under their command.

9. The City of New York ("The City") is a municipal corporation organized under the laws of the State of New York.

10. New York Police Commissioner Raymond Kelly ("The Commissioner") was at all times relevant the Commissioner of the New York City Police Department, and, as such, was a policymaker with respect to training, supervision and discipline of NYPD officers, including the individual defendants. The Commissioner is being sued both in his individual and official capacities.

11. The NYPD is a municipal corporation and the public employer of the said officers.

FACTS

12. On or about June 19, 2009, at approximately 8:00 p.m., immediately after the completion of his work week, the plaintiff was lawfully congregated in a public place on or near 525 Thatford Avenue, Brooklyn, New York.

13. At that time and location, he was socializing and talking with residents of this block. At that time and location, approximately three unmarked police vehicles approached the place where he was lawfully standing.

14. Approximately ten police officers jumped out of the three police vehicles referenced above and commanded that the plaintiff place his hands above his head. One or more police officers then directed the plaintiff to walk to a brick fence located in front of 525 Thatford Avenue.

15. Plaintiff was then ordered to place his face against this brick fence. The police then searched the plaintiff. They searched the plaintiff without probable cause and without plaintiff's consent or permission.

16. The police recovered from the plaintiff only lawful property: keys, wallets and cell phones. No contraband was recovered from him.

17. The police then placed the plaintiff in handcuffs. The police gave no explanation for their conduct other than to state that they did so as part of an investigation. Yet there was no reason given or apparent as to why this plaintiff would be part of any investigation.

18. All police conduct described herein was managed, directed and supervised by Detective Wood of Brooklyn North Narcotics Division (“BNND”) and Sergeant Cahill of BNND. Detective Wood, *inter alia*, ordered the other police officers at the scene to arrest, handcuff and transport the plaintiffs. The plaintiffs were then transported to the 75th precinct. Detective Goyco, Detective Grant, Detective Francis, Detective Marinakos and Police Officer Lavelle each took part and otherwise assisted Wood and Cahill in the unlawful apprehending, arresting, transporting, processing incarcerating and subsequent strip-searching of the plaintiff. Upon information and belief, each named police officer were members of a tactical team seeking to recover contraband through a series of undercover narcotic operations whereby it was scripted that Sgt. Cahill, Detective Wood and Police Officer Lavelle were designated “Team Leaders” all seated in one police vehicle; Detective Goyco and Detective Grant followed in a separate vehicle; and Detective Francis and Detective Marinakos operated a prisoner van. Upon information and belief, Undercover Officer C092, Undercover Officer C081 and Undercover Officer C062 were part of this same tactical team assigned by the team as civilian actors attempting to purchase narcotics in different locations or “sets” throughout Brooklyn.

19. Upon arriving at the 75th precinct, the defendants continually failed to offer or provide any explanation for their actions in making an unlawful stop, approach and arrest of plaintiff.

20. At the 75th precinct, Police Officer John Doe strip-searched the plaintiff without probable cause. Upon information and belief, Police Officer John Doe was directed to do so by defendants Detective Wood and Sergeant Cahill. No contraband or unlawful items were recovered from the plaintiff.

21. Plaintiff remained handcuffed and otherwise detained at all times until he was released from custody. Plaintiff was released directly from Central Booking upon the determination by the Kings County District Attorney’s office to decline to criminally prosecute this plaintiff. In total, this plaintiff was incarcerated for approximately 27 hours each before being released from custody.

22. The actions of the defendants were without probable cause. No warrants were ever produced by the police at any time. The defendant police officers named above each seized, interrogated and searched the plaintiff and his person without a warrant.

23. The warrantless search and seizure was illegal as the Fourth Amendment of the United States Constitution protects *inter alia*, individuals from both unlawful search and seizures as well as against the more traditional seizure of "papers and effects."

24. The plaintiff was arrested and detained without probable cause or legal justification.

25. At no time during the events described above was plaintiff intoxicated, incapacitated, a threat to the safety of himself or others, or disorderly. Plaintiff had committed no criminal offenses.

26. The defendant police officers had no warrant for the arrest of the plaintiff, no probable cause for the arrest of the plaintiff, and no legal cause or excuse to seize the person of the plaintiff.

27. Plaintiff was arbitrarily and falsely detained.

28. At all times during the events described above, the defendant police officers were engaged in a joint venture. The individual officers assisted each other in performing the various actions described and lent their physical presence and support and the authority of their office to each other during the said events.

29. As a direct and proximate result of the said acts of the defendant police officers, the plaintiff suffered the following injuries and damages:

- a. Violation of his constitutional rights under the Fourth and Fourteenth Amendments to the United States Constitution to be free from an unreasonable search and seizure of his person;
- b. Loss of his physical liberty;
- c. Physical or mental anguish, pain and suffering and/or emotional trauma and suffering.

30. The actions of the defendant Officers violated the long-established and well-settled federal constitutional right of plaintiff, to wit: the freedom from the unreasonable seizure of their person.

COUNT I

42 U.S.C. Section 1983 Against Individual Defendant NYPD Officers.

31. Paragraphs 1 through are incorporated herein by reference as though fully set forth.

32. Plaintiff claims damages for the injuries set forth above under 42 U.S.C. Section 1983 against defendants City of New York, Police Commissioner Raymond W. Kelly, New York Police Department Detective Brian Wood, Sergeant James Cahill, Detective Jelson Goyco, Detective Kathleen Grant, Detective Matthew Francis, Detective Demos Marinakos, Police Officer Jennifer Lavelle, Undercover Officer C092, Undercover Officer C081, Undercover Officer C062 and Police Officer John Doe who all engaged in the actions and conduct alleged herein in their official capacities as NYPD police officers and under color and authority of federal and state law, regulation, ordinance, custom and usage, for violation of plaintiff's constitutional rights under color of law. Each acted within the course and scope of their employment with the NYPD of defendant City of New York.

33. That such actions served to deprive plaintiff of the rights and privileges of the United States Constitution, the Fourteenth Amendment of the U.S. Constitution and Section 1983 of 42 U.S.C. In particular, the plaintiff was deprived of his right to due process of law, of his right to happiness and to liberty.

34. Defendants New York City Police Officers named not only engaged in intentional conduct, but they did so either with the intent to violate the plaintiff's civil rights, or with a reckless disregard for whether defendants' conduct would violate such rights.

35. Plaintiff has been damaged as a result of defendants' wrongful acts in the amount of Five Million Dollars.

COUNT II

False Arrest and Illegal Imprisonment Against Individual Defendant NYPD Officers.

36. Paragraphs 1 through 35 are incorporated herein by reference as though fully set forth hereinafter at length.

37. Defendant NYPD Police Officers named and unnamed herein illegally arrested and illegally imprisoned plaintiffs. In doing so, these officers not only engaged in intentional conduct, but they did so either with the intent to violate the plaintiff's federal rights, or with a reckless disregard for whether defendants' conduct would violate such rights.

38. As a result of this false arrest and illegal imprisonment, the plaintiff suffered the damages as aforesaid in the amount of Five Million Dollars.

COUNT III

Assault and Battery against Defendants, et al.

39. Paragraphs 1 through 38 are incorporated by reference as though fully set forth hereinafter at length.

40. At the above time and place, defendants Detective Brian Wood, Sergeant James Cahill and one or more of the other police officers, either named or unnamed, and City of New York, through the actions of its agents, employees and police officers at the scene committed assault and battery (all within the course and scope of their employment) by subjecting plaintiff to harmful and offensive bodily contact with the intent to do so in the course of strip-searching the plaintiff.

41. At the above time and place, plaintiff was consciously aware of this contact, did not consent to it, and was otherwise harmed by it.

42. Such harmful and offensive contact was unlawful, excessive, and was without legal justification or other privilege.

43. Defendants have deprived plaintiff of his civil, constitutional and statutory rights and have conspired to deprive him of such rights and are liable to plaintiff under 42 USC Section 1983, New York State Common Law and the New York State Constitution.

44. By reason of the foregoing, plaintiff sustained serious physical/emotional injuries and conscious pain and suffering herein which have resulted, or may foreseeably result, in certain health and medical care, and claims damages in the sum of Five Million Dollars.

COUNT IV

42 U.S.C. Section 1983 Against Defendants

45. Paragraphs 1 through 44 are incorporated herein by reference as though fully set forth hereinafter at length.

46. Prior to June 19, 2009, the NYPD developed and maintained policies or customs exhibiting deliberate indifference to the constitutional rights of citizens, which caused the violation of plaintiff's rights.

47. It was the policy and/or custom of the NYPD to inadequately supervise, train, discipline, sanction or otherwise direct its police officers, including the defendant officers named in this case, thereby failing to adequately discourage further constitutional violations on the part of its police officers. The NYPD did not require appropriate in-service training of officers on the subject of police misconduct, nor did it take measures to prevent such constitutional abuses such as described herein.

48. As a result of the NYPD's developed policies and customs, police officers of the NYPD, including the defendant officers named in this case, believed that their actions would not be properly monitored by supervisory officers, and that misconduct would not be investigated or sanctioned, but would be tolerated.

49. The above-mentioned policies, practices and customs demonstrated a deliberate indifference on the part of policymakers of the NYPD. Said policies, practices and customs have served to encourage and sanction the police officers' unlawful conduct described above, such conduct having adversely impacted upon the constitutional rights of citizens, and were the cause of the violations of the plaintiff's rights alleged herein on June 19, 2009.

50. Plaintiff has been damaged as a result of defendants' wrongful acts in the amount of Five Million Dollars.

WHEREFORE, the plaintiff demands judgment against the defendants, jointly and severally, as follows:

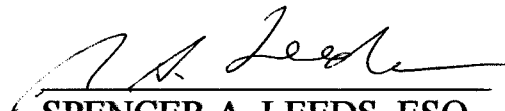
- a. In favor of the plaintiff in the amount of Five Million Dollars for each of plaintiff's Causes of Action;
- b. Awarding costs and disbursements of this action to the plaintiff;
- c. Awarding reasonable attorney fees of this action to the plaintiff;
- d. Awarding plaintiff punitive damages in the amount of Five Million Dollars for each of plaintiff's Causes of Action; and
- e. Awarding such other and further relief as this Court may deem appropriate, just and proper.

JURY DEMAND

The plaintiff hereby demands a jury trial.

Dated: Brooklyn, New York
December 8, 2010

THE PLAINTIFF,
BY


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